

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: May 12, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

The courthouse is open: Department 10 is fully open for in-person hearings. The court **strongly prefers in-person** appearances for all contested law-and-motion matters. For all other hearings, parties may appear either in person or by video. Telephone-only appearances are no longer permitted for civil hearings unless the court grants an exception. (Civil Local Rule 5.A.)

Scheduling motion hearings: Please visit <https://reservations.sccscourt.org> or call 408-882-2430 between 8:30 a.m. and 3:00 p.m. (Mon.-Fri.) to reserve a hearing date for your motion *before* you file and serve it. Motion papers must be filed no more than five court days after reserving the hearing date, or the date will be released to other cases.

Remote appearances: Department 10 uses Unicorn Digital Courtroom (UDC) for remote hearings. **This system requires advance registration with a case number and hearing date.** Please visit this link if you need to appear remotely, and then scroll to the link for Department 10:
<https://santaclara.courts.ca.gov/online-services/remote-hearings>.

Recording is prohibited: Most hearings are open to the public, but state and local court rules prohibit recording of court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

Court reporters: Unfortunately, the court is not able to provide official court reporters for civil proceedings. If any party wishes to have a court reporter, the appropriate form must be submitted. See <https://santaclara.courts.ca.gov/general-information/court-reporter-information>.

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LINE #	CASE #	CASE TITLE	RULING
Line 1	23CV428277	Stratim Capital Growth Fund, LLC et al. v. Altierre Corporation et al.	Click LINE 1 or scroll down for ruling.
Line 2	24CV431689	Jane Roe v. The Estate of Roland Alexander Wrigley, deceased et al.	Click LINE 2 or scroll down for ruling.
Line 3	25CV463479	Zync, Inc. v. Dominik Odak et al.	Click LINE 3 or scroll down for ruling.
Line 4	25CV463479	Zync, Inc. v. Dominik Odak et al.	Click LINE 3 or scroll down for ruling.
Line 5	25CV463479	Zync, Inc. v. Dominik Odak et al.	Click LINE 3 or scroll down for ruling.
Line 6	25CV463479	Zync, Inc. v. Dominik Odak et al.	Click LINE 3 or scroll down for ruling.
Line 7	25CV463479	Zync, Inc. v. Dominik Odak et al.	Click LINE 3 or scroll down for ruling.
Line 8	25CV463479	Zync, Inc. v. Dominik Odak et al.	Click LINE 3 or scroll down for ruling.
Line 9	25CV471047	Hang Sheng et al. v. Prometheus Real Estate Group, Inc. et al.	Click LINE 9 or scroll down for ruling.
Line 10	25CV471047	H Hang Sheng et al. v. Prometheus Real Estate Group, Inc. et al.	Click LINE 9 or scroll down for ruling.
Line 11	24CV441592	Fuheng, Inc. et al. v. Ling Yeung	Click LINE 11 or scroll down for ruling.

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Line 12	24CV454281	Alvaro Pedroza v. Ford Motor Company et al.	Click LINE 12 or scroll down for ruling.
Line 13	24CV444462	Catalina Alvez et al. v. Tina Seng et al.	Click LINE 13 or scroll down for ruling.
Line 14	24CV444553	Ana Stamp v. John Stewart Company et al.	Plaintiff Ana Stamp’s motion for trial preference. Notice is proper and the motion is opposed by defendants John Stewart Company et al. A civil litigant “who is over 70 years of age may petition the court” for trial preference if (1) the party has a substantial interest in the action as a whole, and (2) the health of the party is such that preference is necessary to prevent prejudicing the party’s interest in the litigation. (Code Civ. Proc., § 36, subd. (a).) A court may also grant a motion for preference “supported by a showing that satisfies the court that the interests of justice will be served by granting this preference.” (Code Civ. Proc., § 36, subd. (e).) If preference is granted, “court shall set the matter for trial not more than 120 days from that date” and, subject to certain exceptions, “there shall be no continuance beyond 120 days from the granting of the motion.” (<i>Id.</i> , subd. (f).) It is undisputed that plaintiff in this personal injury action is 76 years old (with a birthdate in October 1949). The declaration from plaintiff’s counsel describes plaintiff’s health issues, including an emergency room visit in January 2026. The court finds trial preference is necessary in this matter, under Code of Civil Procedure section 36, subdivisions (a) and (d). Defendants’ arguments that plaintiff’s showing is inadequate are unpersuasive. The motion is GRANTED. The parties are ordered to meet and confer before the May 12, 2026 hearing on this motion to determine mutually agreeable trial dates in August 2026. The court intends to set trial at the hearing on May 12. The court will prepare the order.

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Line 15	25CV459605	Discover Bank v. Michael Farantino	Defendant Michael Farantino's motion to set aside court default. Notice is not proper; there is no proof of service. The motion is CONTINUED to September 24, 2026, at 9:00 a.m. in Dept. 10 to allow for proper service of the motion. The parties are encouraged to meet and confer before that hearing about the possibility of stipulating to set aside the court default. The court will prepare the order.
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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	23CV413103	Borton Petrini, LLP v. Joseph Commendatore	Order of examination. <u>Parties to appear.</u>
Line 2	23CV423385	Velocity Investments, LLC v. Michaela Servando	Claim of exemption by judgment debtor Michaela Servando related to wage garnishment. Notice is proper, and the judgment debtor has the burden of proof. The claim is GRANTED. Servando's income declaration indicates income below the legal minimum amount for an earnings withholding order. (Code Civ. Proc., § 706.050.) The court will prepare the order.

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Line 3	24CV453808	CSL Real Estate Investments, LLC, a California limited liability company v. LQDX, INC., a Delaware Corporation	Motion by counsel for defendant LQDX, Inc. to be relieved as counsel. Notice is proper and the motion is opposed by plaintiff CSL Real Estate Investments, LLC, on the ground the trial is set and a corporation cannot be self-represented. The motion is CONTINUED to June 9, 2026, at 9:01 a.m. in Dept. 10. Counsel for defendant is ordered to inform its client that a corporation cannot be self-represented. In addition to defense counsel, a representative from defendant LQDX, Inc. must appear (either in person or by videoconference) for the continued hearing on the motion to describe efforts to obtain new counsel. If defendant finds new counsel and files a substitution of counsel form before June 9, the matter can go off calendar.
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Calendar Line 1

Case Name: Stratim Capital Growth Fund, LLC et al. v. Altierre Corp. et al.

Case No.: 23CV428277

This is an action seeking to enforce secured note purchase agreements brought by plaintiffs Stratim Capital Growth Fund, LLC, Stratim Cloud Fund, LP and Stratim Capital LLC (collectively, Stratim) against defendants Altierre Corporation (Altierre) and Doe defendants. The original and still operative complaint, filed on December 22, 2023, alleges three causes of action for breach of contract, one by each of the Stratim entities. Altierre is insolvent and has failed to defend itself in this action. On March 27, 2024, the Stratim entities dismissed the Doe entities, leaving Altierre as the only defendant.

The court granted a motion for leave to intervene in July 2024 brought by Kline Hill Partners Fund II LP (Kline Hill). The December 2024 operative first amended complaint in intervention (FACI) alleges a single cause of action for declaratory relief against the Stratim entities and Zachary Abrams (Abrams). The Stratim entities and Kline Hill are also involved in civil litigation in San Francisco County that predates this lawsuit: *Kline Hill Partners Fund II LP v. Stratim Capital LLC et al.*, case No. CGC-21-594124 (hereafter, San Francisco lawsuit).

The Stratim entities and Zachary Abrams demurred to the FACI in June 2025. That demurrer was not based on statute of limitations. The court overruled that demurrer and ordered the Stratim entities and Abrams to file an answer to the FACI. That answer was filed in July 2025. The court takes judicial notice of its orders on its own motion. (Evid. Code, § 452, subd. (d).)

At issue is a motion for judgment on the pleadings by defendant-in-intervention Abrams, directed at the FACI. Kline Hill opposes. The motion was filed in September 2025. An “amended” version of the motion was filed seven months later in April 2026 without leave of court. Because parties may not amend filed motions without leave of court, the amended version has not been considered.

LEGAL STANDARDS FOR MOTIONS FOR JUDGMENT ON THE PLEADINGS

A motion for judgment on the pleadings “is equivalent to a belated general demurrer.” (*Sprague v. County of San Diego* (2003) 106 Cal.App.4th 119, 127.) It has the same function as a general demurrer, but it is made after the time for demurrer has expired. Except as provided by statute (Code Civ. Proc., § 438), the rules governing demurrers apply. As with a demurrer, in ruling on a JOP motion the court accepts as true all properly pleaded material factual allegations, but does not accept as true contentions, deductions, or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Extrinsic evidence cannot be considered. As with a demurrer, a motion for judgment on the pleadings cannot be granted as to only part of a cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905.)

The court has considered the form declaration from Abrams counsel J. Craig Crawford in support of the motion only to the extent it discloses the meet and confer efforts required by statute. The court has considered the declaration from Kline Hill counsel Joseph Addagio filed

with the opposition only to the extent it authenticates copies of documents submitted for judicial notice. The court has not considered exhibit 6 to the Addagio declaration or any argument based on this extrinsic evidence. The court has also not considered any portion of the declaration from J. Craig Crawford submitted with the reply. The request for judicial notice submitted with the reply is denied as irrelevant to the material issue before the court. Both of these documents impermissibly attempt to introduce a new argument with the reply. (*Tellez v. Rich Voss Trucking Inc.* (2015) 240 Cal.App.4th 1052, 1066 [courts do not consider points raised for the first time in a reply brief].)

DISCUSSION

Request for Judicial Notice

Kline Hill requests judicial notice of five documents (exhibits 1-5 to the Addagio declaration) in support of the opposition. “Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.”

The request is granted in part and denied in part. Evidence Code section 452, subdivision (h) does not apply to any of the submitted documents. Judicial notice of exhibits 1-4 is denied as irrelevant to the material issue before the court on this motion. Judicial notice of exhibit 5, a copy of the answer to the FACI jointly filed by Abrams and the Stratim entities, is granted under Evidence Code section 452, subdivision (d) only.

Abrams’s Motion for Judgment on the Pleadings Must Be Denied

Abrams’s notice of motion for judgment on the pleadings contends that the FACI’s claim for declaratory relief is time-barred as brought against him by an unidentified statute of limitations. (See Sept. 4, 2025 notice of motion.) That is the only basis for the motion, and the only material issue before the court. In the supporting memorandum, the statute is identified as Code of Civil Procedure section 337. (See memorandum at p. 3:25-26.) Where a declaratory relief claim concerns obligations or liabilities founded upon an instrument in writing, within the meaning of section 337, a four-year statute of limitations applies. (*Ginsberg v. Gamson* (2012) 205 Cal.App.4th 873, 883.)

Abrams’s motion must be denied for three reasons. First, Abrams waived the statute of limitations defense by not specifying the applicable statute of limitations in his answer. An answer that fails to specify the applicable statute (and subdivision, if applicable) raises no issue and presents no defense. (*Area 55, LLC v. Nicholas & Tomasevic, LLP* (2021) 61 Cal.App.5th 136, 172-173 [reversing grant of anti-SLAPP motion in part based on waiver].) “Stated differently, where the defendant fails to comply with [Code of Civil Procedure] section 458’s strict pleading requirements, the defendant ‘waives the defense’ of the bar of the applicable statute of limitations.” (*Ibid.*) “This section ‘has been strictly construed as requiring that the relevant statute and subdivision, if applicable, be pleaded, otherwise the answer fails to raise

the statute of limitations defense.’ ” (*Southern California Edison Co. v. Severns* (2019) 39 Cal.App.5th 815, 827.)

The July 2025 answer to the FACI jointly filed by Abrams and the Stratim entities asserts, as its second affirmative defense, that “the FACI discloses that each cause of action therein is barred by the applicable statute of limitations.” (See Answer to FACI at p. 2:20-21.) That is inadequate under Code of Civil Procedure section 458. Abrams waived any statute of limitations defense.

Second, even assuming the defense was not waived, Abrams’s motion fails because any alleged defect as to timing does not appear on the face of the FACI. As with a demurrer, a claimed affirmative defense is not a basis for granting a motion for judgment on the pleadings unless the defect appears on the face of the complaint. (*Ivanoff v. Bank of America, N.A.* (2017) 9 Cal.App.5th 719, 726 [a general demurrer does not ordinarily reach affirmative defenses; a demurrer will only lie where an affirmative defense is clearly raised by the face of the complaint, such as a statute of limitations].) The running of the statute must appear clearly and affirmatively from the dates alleged in the pleading; it is not enough that the complaint might be barred. (*Committee for Green Foothills v. Santa Clara County Board of Supervisors* (2010) 48 Cal.4th 32, 42.) “Generally, the limitations period starts running when the last element of a cause of action is complete.” (*NBCUniversal Media, LLC v. Super. Ct.* (2014) 225 Cal.App.4th 1222, 1231.)

The FACI’s declaratory relief cause of action seeks a declaration that the secured note purchase agreements are void and a declaration as to Altierre’s rights. It does not seek any declaration specifically as to Abrams. (See FACI at ¶¶ 73-80.) Abrams’s motion targets only a part of the declaratory relief cause of action. Abrams contends that Kline Hill knew of his alleged wrongdoing “by no later than March 2020,” and “must have filed the FACI by March 2024 for it to be timely.” (*Id.* at pp. 3:23-4:1.) But it does not appear clearly and affirmatively from the dates alleged in the FACI that Kline Hill knew of Abrams’s alleged wrongdoing “by no later than March 2020.” Because the declaratory relief cause of action is not time-barred on its face as brought against Abrams, the motion must be denied.

Third, Abrams’s motion failed to account for the tolling that automatically applied under former Emergency Rule 9, implemented by the Judicial Council of California during the Covid-19 pandemic. That rule provides, in relevant part: “Notwithstanding any other law, the statutes of limitations and repose for civil causes of action that exceed 180 days are tolled from April 6, 2020 to October 1, 2020.” (Cal. Rules of Court, Appx., Emergency Rule 9, amended effective May 29, 2020.) Generally, the effect of tolling is that the limitations period stops running during the tolling event, and begins to run when the tolling event has concluded. (*Lantzy v. Centex Homes* (2003) 31 Cal.4th 363, 370.) “As a consequence, the tolled interval, no matter when it took place, is tacked onto the end of the limitations period, thus extending the deadline for suit by the entire length of time during which the tolling event previously occurred.” (*Id.* at 370-371.)

The time during which Rule 9 stopped the running of the statute of limitations, April 6, 2020 to October 1, 2020, is 178 days. If, as Abrams claims, Kline Hill became aware of his alleged wrongdoing by March of 2020, the full period covered by Rule 9 applies. Adding 178 days to March 29, 2024 leads to a deadline of September 23, 2024, well after the court granted

Kline Hill leave to intervene in July 2024. The original complaint-in-intervention named Abrams as a defendant-in-intervention and described his alleged wrongdoing.

CONCLUSION

Kline Hill's request for judicial notice submitted with the opposition is granted in part and denied in part.

Abrams's request for judicial notice submitted with his reply is denied.

Abrams's motion for judgment on the pleadings based solely on the statute of limitations is denied.

The court will prepare the order.

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Calendar Line 2

Case Name: Jane Roe v. Estate of Roland Alexander Wrigley et al.

Case No.: 24CV431689

This is an action arising from the alleged intentional sexual assault and sexual battery of plaintiff Jane Roe (Roe) by decedent Roland Alexander Wrigley (Decedent) on October 23, 2022, when Roe was 15 years old. Decedent was allegedly arrested and charged with sexual assault. He took his own life in March 2023 while in jail awaiting trial.

Roe's guardian ad litem initiated a probate action, *Estate of Roland Alexander Wrigley*, (case No. 24PR196458), by filing a petition for letters of administration of decedent's estate as a creditor of the estate. The probate court (Judge Duong) issued its order on the final distribution of the estate on April 23, 2025. That order states, in relevant part: "One (1) creditor's claim was filed on August 30, 2024, more than five (5) months after the one-year anniversary of decedent's date of death. . . . This claim is barred under California Code of Civil Procedure 366.2. This claim is disallowed. The estate shall not pay anything on this claim."

Roe's original complaint in this matter was filed on February 23, 2024. Plaintiff, through her guardian ad litem John D.M. Roe, alleged six causes of action against decedent's estate and Doe defendants: (1) negligence; (2) intentional infliction of emotional distress; (3) sexual assault; (4) sexual battery; (5) assault; and (6) battery. Attached to the complaint as exhibit A was a copy of the January 19, 2024, petition for letters of administration.

The Estate previously demurred to the complaint and a moved for sanctions (Code Civ. Proc., § 128.7). Both were heard by this court in May 2025. The court denied the motion for sanctions, finding that the complaint could not have been considered frivolous at the time it was filed because "[i]t was only after the probate court's final order on March 3, 2025 that an argument could be made that the complaint in this matter would have no chance of succeeding." (May 29, 2025 order at p. 12:17-18.) The court sustained the demurrer without leave to amend as to the second, third, fourth, fifth, and sixth causes of action, finding they were time-barred under Code of Civil Procedure section 366.2. The demurrer to the first cause of action was sustained with leave to amend on the same basis. The first cause of action contradicted the remainder of the complaint by framing Decedent's intentional acts as the product of the "negligent" decision to become intoxicated (an intentional act in itself). (Complaint at ¶ 16.) The court noted that Roe's opposition argument regarding the demurrer to the first cause of action was "best understood as one for leave to amend the 'negligence' cause of action to include a new statutory component (including Probate Code sections 550-555 and 9390), and to include greater particularity." (May 29, 2025 order at p. 9:9-11.) That was the basis for granting leave to amend. The court further noted that it had "doubts that the first cause of action can be amended without contradicting the existing factual allegations, which the court will consider on any subsequent pleading challenge." (*Id.* at p. 10:3-5.) The court takes judicial notice of Judge Duong's final distribution order as well as this court's order on the demurrer and motion for sanctions on its own motion. (Evid. Code, § 452, subd. (d).)

The operative first amended complaint (FAC) was filed in June 2025. It states a single cause of action for negligence. The FAC contradicts factual allegations in the original complaint by alleging that Decedent "became so inebriated that he could not form a specific intent to harm" Roe. (See FAC at ¶ 9; complaint at ¶¶ 23, 30, 37, 44, and 51.) There are no

exhibits attached to the FAC. In August 2025, the court granted Roe’s request to substitute Rebecca Estrada (who had already been named in the FAC) for Doe 2.

At issue is a motion to strike the entire FAC brought by the Estate in August 2025. Roe opposes. The motion is unambiguously labeled a motion to strike and refers to Code of Civil Procedure sections related to motions to strike rather than those related to a demurrer. The court declines the Estate’s request, raised in the reply, that the court treat the motion as a demurrer.

LEGAL STANDARDS—MOTION TO STRIKE

Under Code of Civil Procedure section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. Irrelevant matter includes (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, and (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 431.10, subds. (b), (c).) The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a); *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

California Rules of Court, rule 3.1322(a) requires that “[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322(a).)

As with a demurrer, no extrinsic evidence can be considered. The court has considered the declaration from Estate counsel Steven Schunk only to the extent it discusses the meet and confer efforts required by statute. The court has not considered the attached exhibits. The court has not considered the declaration of Carole Okolowicz filed in support of the opposition, or its attached exhibits. While the party bringing a motion to strike is required to file a declaration describing meet and confer efforts, there is no authority permitting an opposing party to file a declaration.

DISCUSSION

The Estate’s motion seeks to strike the entire FAC, based on the sham pleading doctrine. (Notice of Motion at p. 2:3-5, citing *Deveny v. Entropin, Inc.* (2006) 139 Cal.App.4th 408 [an appeal of a summary judgment ruling where the Court of Appeal found the sham pleading doctrine did not apply].)

A motion to strike is not a substitute for a demurrer. (*Pierson v. Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342 “[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer.”).) Code of Civil Procedure section 436, subdivision (a), “does not authorize attacks on entire causes of action, let alone entire

pleadings.” (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528 [citing *Quiroz v. Seventh Ave. Center* (2006) 140 Cal.App.4th 1256, 1281].) “Its purpose is to authorize the excision of superfluous or abusive allegations.” (*Ibid.*)

The Estate provides no authority for the proposition that the sham pleading doctrine can be the basis for a motion to strike, let alone a motion to strike an entire pleading. The sham pleading doctrine arises:

where a party files an amended complaint and seeks to avoid the defects of a prior complaint either by omitting the facts that rendered the complaint defective or by pleading facts inconsistent with the allegations of prior pleadings. [Citation.] In these circumstances, the policy against sham pleading permits the court to take judicial notice of the prior pleadings and requires that the pleader explain the inconsistency. If he fails to do so the court may disregard the inconsistent allegations and read into the amended complaint the allegations of the superseded complaint.

(*Owens v. Kings Supermarket* (1988) 198 Cal.App.3d 379, 384.) The rule “is intended to prevent sham pleadings omitting an incurable defect in the case.” (*Berman v. Bromberg* (1997) 56 Cal.App.4th 936, 946.) The sham pleading doctrine is not a basis for a motion to strike.

The court acknowledges that its previous order sustaining the earlier demurrer noted that recasting Decedent’s alleged intentional acts that harmed Plaintiff as acts that occurred only because of Decedent’s alleged negligence both contradicts prior factual allegations and seems to be illogical. (See *Coit Drapery Cleaners, Inc. v. Sequoia Ins. Co.* (1993) 14 Cal.App.4th 1495, 1603 [“California law and applicable precedents do not allow the recharacterization of such clearly intentional and willful sexual misconduct as merely negligent or nonwillful, so as to trigger insurance coverage.”]; *Horace Mann Ins. Co. v. Barbara B.* (1993) 4 Cal.4th 1076, 1086 [“We do not sanction relabelling child molestation as negligence in order to secure insurance coverage for the plaintiff’s injuries.”].) But the Estate chose the wrong procedural vehicle for the argument it is making. The motion to strike the entire FAC must be denied. To the extent the Estate chooses to bring a different motion in the future to raise these issues, the court will consider them.

CONCLUSION

The Estate’s motion to strike the entire FAC is denied.

The court will prepare the order.

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Calendar Lines 3 through 8

Case Name: Zync, Inc. v. Dominik Odak et al.

Case No.: 25CV463479

This is an action brought by Plaintiff Zync, Inc. (Zync), against BMW of North America (BMW); Dominik Odak (Odak), a BMW employee who resides in California; and Xperi, Inc. (Xperi).

Zync's original complaint was filed on April 14, 2025, and named BMW and Odak as defendants (along with Doe defendants). The complaint alleged four causes of action: (1) misappropriation of trade secrets in violation of the California Uniform Trade Secrets Act (CUTSA); (2) breach of written contract, a Pilot Project Agreement entered into between Zync and BMW, alleged against BMW only; (3) fraud; and (4) unlawful business practices in violation of California Business and Professions Code section 17200 et seq. There were no exhibits attached. The complaint admitted BMW's status as a subsidiary of a German corporation and quoted (without citation) purported terms of the Pilot Project Agreement. It also stated that it was Zync's practice to require nondisclosure agreements (NDAs) before sharing information. (See complaint at ¶¶ 1, 11, 19, 25-27, 79-80.)

BMW and Odak (collectively, the BMW Defendants) moved to dismiss the complaint. Zync opposed. After Zync obtained new counsel, it filed an ex parte application for a continuance, representing that the new counsel could not appear at the scheduled hearing and that counsel needed more time to prepare for the already opposed motion. The court granted the ex parte application, continuing the motions to dismiss (as well as related motions to seal) to November 2025.

Zync then filed the operative first amended complaint (FAC) on November 3, 2025. The FAC added Xperi as a defendant for the first time. The FAC alleges seven causes of action: (1) misappropriation of trade secrets in violation of the CUTSA (now alleged against Xperi as well); (2) breach of written contract, the Pilot Project Agreement entered into between Zync and BMW, alleged against BMW only; (3) fraud; (4) aiding and abetting fraud (against Xperi only); (5) unlawful business practices (now alleged against Xperi as well); (6) interference with contractual relations; and (7) violation of Penal Code section 502, the Computer Data Access and Fraud Act, based on the misappropriation claim. Attached as exhibit 1 to the FAC is a copy of a press release by non-party Porsche, dated July 22, 2021.

The FAC omits material factual allegations that were alleged in the original complaint, including: BMW's status as a subsidiary of a German corporation; Zync's practice of requiring NDAs; and the description of specific terms of the Pilot Project Agreement. The court continues to consider these allegations from the original complaint. (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034; *Larson v. UHS of Rancho Springs, Inc.* (2014) 230 Cal.App.4th 336, 343 [courts may consider omitted and inconsistent allegations from earlier pleadings].)

The court issued an order in January 2026, based on a stipulation from the parties. That order stated, "BMW Defendants and Xperi shall each respond to the First Amended Complaint, by Motion to Dismiss, Demurrer and/or Motion to Strike, by January 26, 2026." Any such motions or demurrers were set for hearing on May 12, 2026. The court takes judicial notice of its prior orders on its own motion. (Evid. Code, § 452, subd. (d).)

Only the BMW Defendants complied with the court's order, filing a motion to dismiss, demurrer, and motion to seal on January 26, 2026. Zync opposes the motion to dismiss and the demurrer. Xperi filed an untimely demurrer on February 2, 2026, and untimely motions to dismiss and to seal on February 4, 2026, without leave of court.

Discussion of BMW Defendants' Motion to Dismiss

The BMW Defendants' motion to dismiss is brought under Code of Civil Procedure sections 410.30 and 418.10; they argue the case must be heard in a different forum. (See Notice of Motion at p. i:6-7.) The BMW Defendants "request for incorporation by reference," which does not cite any provision of the Evidence Code, is denied. The request for judicial notice made in a footnote in their supporting memorandum is also denied. (Cal. Rules of Court, rules 3.1113(l) and 3.1306(c).)

The BMW Defendants' motion is based on exhibits A and B to the declaration of counsel Lee Rubin. Those exhibits show that Zync and BMW's German parent company, Bayerische Motoren Werke Aktiengesellschaft, entered into a confidentiality agreement in September 2021, prior to Zync and BMW entering into the Pilot Project Agreement. The agreement is in both German and English. Section 0.1 of the confidentiality agreement (exhibit B) defines "trade secrets" as "technical as well as commercial information which are not generally known or not readily accessible and therefore are of commercial value, as especially those which are marked as trade secrets" Section 0.9 defines "Connected Company" to include subsidiaries of a party to the agreement such as BMW North America LLC. Section 1.1 further states that the confidentiality agreement "shall apply to any and all confidential information, including Trade Secrets, directly or indirectly disclosed by a Party or a Connected Company of a Party in connection with the Project, regardless of whether this information was disclosed to the other Party or to a Connected Company of this Party." Section 9 of the confidentiality agreement states: "This Agreement shall be governed by the laws of the Federal Republic of Germany and the exclusive place of jurisdiction shall be Munich, unless a different place of jurisdiction is required by mandatory law."

The Pilot Project Agreement (exhibit A to the Rubin declaration), which both the original complaint and the FAC allege Zync was a party to, incorporates the confidentiality agreement, including its forum selection clause. Section 5 of the Pilot Project Agreement (General Information) states, under "Confidentiality," that the existence of the Agreement, the information disclosed within it, "as well as any other documents or information made available by Zync in connection with this Pilot Project constitute Confidential Information (as defined in the Confidentiality Agreement, dated September 12, 2021, between the parties the 'NDA'). All such Confidential Information shall be subject to the terms and conditions of the NDA." Section 5 further states, under "General," that: "*Except for the NDA*, this Agreement is the sole agreement with respect to the subject matter hereof and supersedes all other agreements and understandings between the Parties with respect to the same." (Court's emphasis.)

A defendant who has already entered a general appearance may file an inconvenient forum motion under section 410.30. (*Britton v. Dallas Airmotive, Inc.* (2007) 153 Cal.App.4th 127, 134–135; *Global Financial Distributors Inc. v. Superior Court* (2019) 35 Cal.App.5th 179, 192 (*Global Financial*).) A motion to stay or dismiss under Code of Civil Procedure sections 410.30 and 418.10 that is based on a forum selection clause "is a special type of forum

non conveniens motion” and “[t]he factors that apply generally to a forum non conveniens motion do not control” the analysis where a mandatory forum selection clause is present. (*Berg, supra*, at p. 358.) “Instead, the test is simply whether application of the clause is unfair or unreasonable; if not, the clause is usually given effect.” (*Drulias v. 1st Century Bancshares, Inc.* (2018) 30 Cal.App.5th 696, 703 (*Drulias*).) “Both California and federal law presume a contractual forum selection clause is valid and place the burden on the party seeking to overturn the forum selection clause.” (*Schlessinger v. Holland America* (2004) 120 Cal.App.4th 552, 558.) As the California Supreme Court has reiterated: “‘No satisfying reason of public policy has been suggested why enforcement should be denied a forum selection clause appearing in a contract entered into freely and voluntarily by parties who have negotiated at arm’s length.’” (*EpicentRx, Inc. v. Superior Court* (2025) 18 Cal.5th 58, 73 (*EpicentRx*).)

The party seeking to avoid enforcement of a forum selection clause bears the burden to show that its enforcement would be unreasonable, unless the claims at issue are based on unwaivable rights created by California statute. (*Drulias, supra*, 30 Cal.App.5th at p. 703.) “Claims that the previously chosen forum is unfair or inconvenient are generally rejected.” (*Ibid.*) “In the context of forum selection clauses, enforcement is considered unreasonable where the forum selected would be unavailable or unable to accomplish substantial justice or there is no rational basis for the selected forum.” (*Id.* at p. 707.) Even a California resident will normally be bound by a forum selection clause; that the selected forum may offer fewer protections than a California one (such as the right to a jury trial in civil cases) is not a basis for refusing to enforce a contractual forum selection clause. (See *EpicentRx, supra*, 18 Cal.5th at pp. 73-77 [discussing cases].)

The BMW Defendants’ evidence is sufficient to demonstrate that the forum selection clause in the confidentiality agreement applies to all of Zync’s claims alleged against them. The original complaint and the FAC both confirm that all alleged wrongdoing by the BMW Defendants relates to alleged theft of technology that constitutes “trade secrets” and “confidential information” as defined in the confidentiality agreement and is subject to the terms of the confidentiality agreement, including the forum selection clause, that are incorporated into the Pilot Project Agreement.

The Pilot Project Agreement is expressly subject to section 9 of the confidentiality agreement. The only logical interpretation of Section 9 of the confidentiality agreement is that the forum selection clause here is a mandatory one requiring any lawsuit arising from the disclosure or misappropriation of confidential information in connection with the Pilot Project to be brought in Munich, Germany. (See *Bushansky v. Soon-Shiong* (2018) 23 Cal.App.5th 1000, 1011 [finding clause mandatory where it stated, “the Court of Chancery of the State of Delaware (or, if such court lacks jurisdiction, any other state or federal court located within the State of Delaware) shall be the sole and exclusive forum ... for any derivative action.”]; *Cal-State Business Products & Services, Inc.* (1993) 12 Cal.App.4th 1666, 1672, fn. 4 [“[A]ny appropriate state or federal district court located in the Borough of Manhattan, New York City, New York shall have exclusive jurisdiction over any case or controversy arising under or in connection with this Agreement ...” found to be mandatory language].)

When the burden shifts to Zync, it is unable to demonstrate that enforcement of the mandatory forum selection clause would be unreasonable. Zync’s argument that traditional forum non conveniens analysis applies here is unpersuasive, as Zync undeniably entered into a

contract with Bayerische Motoren Werke Aktiengesellschaft that contains a forum selection clause. Contract interpretation is a question of law for the court, and the court finds that the incorporation of the forum selection clause into the Pilot Project Agreement applied the clause to both Zync and BMW. Zync CEO Rana Sobhanny's claim in his opposing declaration that he did not believe the clause applied to Zync is unpersuasive. "[A] witness is incompetent to give an opinion on the meaning of the contract language." (*DVD Copy Control Assn., Inc. v. Kaleidescape, Inc.* (2009) 176 Cal.App.4th 697, 715 [interpretation of written contract is solely a judicial function unless the interpretation turns upon the credibility of extrinsic evidence].)

Zync does not argue that there is no rational basis for the selected forum, Germany, or that the courts of the Federal Republic of Germany would be unable to accomplish substantial justice. The court disagrees with Zync's argument that the confidentiality agreement is "irrelevant" to its claims or that its claims are not based on trade secrets or confidential information as defined in the confidentiality agreement. The original complaint and the FAC contradict Zync's argument.

Zync argues that the forum selection clause should not be enforced because Zync was fraudulently induced into signing the confidentiality agreement/NDA (presumably by non-party Bayerische Motoren Werke Aktiengesellschaft, the only other party to that agreement). But the FAC omitted the existence of the confidentiality agreement (even though the evidence establishes that Zync was always aware of it). The FAC did not allege that confidentiality agreement (as opposed to the Pilot Project Agreement) was the product of fraud. Finally, Zync has failed to show that enforcing the previously unacknowledged forum selection clause would be "unconscionable" because of distance or the expense to Zync. (*Drulias, supra*, 30 Cal.App.5th at p. 703 ["Claims that the previously chosen forum is unfair or inconvenient are generally rejected."].)

The BMW Defendants' motion to dismiss all causes of action alleged against them in the FAC is granted. If Zync wishes to pursue this litigation, it must do so in Munich, Germany.

Discussion of the BMW Defendants' Demurrer to the FAC

The BMW Defendants' demurrer to the FAC's first, second, third, fifth, sixth, and seventh causes of action on the ground that they fail to state sufficient facts as alleged against them is overruled as moot in light of the court's ruling granting the BMW Defendants' motion to dismiss.

Discussion of Xperi's Motion to Dismiss

As mentioned above, Xperi failed to file its motion to dismiss by the January 2026 deadline set by this court's prior order. The motion does not mention, much less explain, that failure. But nor does Zync comment on it in its opposition to Xperi's motion. Because the untimely filing did not prevent Zync from filing a substantive opposition (and because both the motion and the opposition largely restate arguments from the BMW Defendants' motion), the court will exercise its discretion to consider it on the merits.

As an initial matter, Xperi is correct that it may raise the forum selection clause in the confidentiality agreement between Zync and Bayerische Motoren Werke Aktiengesellschaft

that was incorporated into the Pilot Project Agreement between Zync and BMW as a potential bar to the claims alleged against it despite not having signed it. Standing to assert a contractual forum selection clause is a question of law for the court. (*Bigna v. Fike* (2000) 80 Cal.App.4th 229, 233.) Parties “closely related” to the contractual relationship, such as parties like Xperi that are alleged to have participated in fraudulent misrepresentations, may enforce a forum selection clause. “To hold otherwise would be to permit a plaintiff to sidestep a valid forum selection clause simply by naming a closely related party who did not sign the clause as a defendant.” (*Lu v. Dryclean-U.S.A of California, Inc.* (1992) 11 Cal.App.4th 1490, 1494.) “The key to the closely related test is whether the nonsignatories were close to the contractual relationship, not whether they were close to the third party signator. This makes sense because the forum selection clause is part of the underlying contract, and it is the contractual relationship gone awry that presumably spawns litigation and activates the clause. Giving standing to all closely related entities honors general principles of judicial economy by making all parties closely allied to the contractual relationship accountable in the same forum, thereby abating a proliferation of actions and inconsistent rulings.” (*Bigna, supra*, 80 Cal.App.4th at p. 235.)

Here the FAC adds Xperi as a defendant for the first time and expressly alleges that it directly misappropriated Zync’s trade secrets and aided and abetted the alleged fraud and misappropriation by the BMW Defendants. Based on the FAC’s allegations, Xperi has standing to assert the contractual forum selection clause. Its motion to dismiss the causes of action in the FAC alleged against it is granted for the same reasons as the BMW Defendants’ motion.

Discussion of Xperi’s Demurrer to the FAC

Xperi’s demurrer to the FAC’s first, fourth, fifth, sixth and seventh causes of action on the ground that they fail to state sufficient facts is overruled as moot in light of the court’s ruling on Xperi’s motion to dismiss.

Associated Motions to Seal by Defendants

The BMW Defendants and Xperi have each brought motions to seal certain portions of their papers. The BMW Defendants’ motion was timely filed on January 26, Xperi’s motion was filed late on February 4. These motions are not opposed by Zync.

A court has the authority to order that a record be filed under seal if it expressly finds facts that establish: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less-restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550.)

The California Rules of Court do not define what constitutes an “overriding interest.” Instead, this has been left to case law. Different “[c]ourts have found that, under appropriate circumstances, various statutory privileges, trade secrets, and privacy interests, when properly asserted and not waived, may constitute overriding interests.” (*In re Providian Credit Card Cases* (2002) 96 Cal.App.4th 292, 298, fn. 3.)

A declaration supporting a motion to seal should be specific, not conclusory, as to the facts supporting the overriding interest. If the court finds that the supporting declarations are conclusory or otherwise unpersuasive, it may conclude that the moving party has failed to demonstrate an overriding interest that overcomes the right of public access. (*In re Providian Credit Card Cases*, *supra*, 96 Cal.App.4th at pp. 301, 305.).

BMW Defendants' Motion to Seal

The BMW Defendants move to seal portions of their motion to dismiss and demurrer. (Notice of Motion at pp. 2:16-3:7.) But the motion does not request that any part of the declaration in support of the motion to dismiss or the exhibits to that declaration be sealed, despite the declaration having been listed in the notice of lodging of documents conditionally under seal. (Notice of Lodging at p. 2:10-12.) The motion is supported by a conclusory declaration from Lee Rubin, which states that the motion should be granted because BMW North America and Zync have a contractual obligation under the Pilot Project Agreement to not disclose its existence, terms, or any documents or information exchanged between the parties. (Rubin Decl., ¶ 3.) This overstates the scope of the “confidentiality” provision in the Pilot Project Agreement. The motion also does not seek to seal the copies of the Pilot Project Agreement or the confidentiality agreement between Zync and Bayerische Motoren Werke Aktiengesellschaft submitted with the motion to dismiss. The mere existence of a contractual choice of forum provision designating Munich, Germany as the selected forum cannot reasonably be considered a trade secret.

The BMW Defendants' motion to seal is denied for failure to demonstrate an overriding interest that overcomes the right of public access. (*In re Providian Credit Card Cases*, *supra*, 96 Cal.App.4th at pp. 301, 305.)

Xperi's Motion to Seal

The court will exercise its discretion to consider Xperi's late motion to seal. Xperi seeks to seal only portions of its motion to dismiss and does not seek to seal any portion of its demurrer. (Notice of Motion at pp. 2:19 -3:11.) Unlike the BMW Defendants, Xperi also moves to seal the exhibits attached to the declaration in support of its motion to dismiss but not the declaration itself, despite that declaration being listed in its notice of lodging of documents conditionally under seal. (*Id.* at p. 2:8-10.) Xperi's motion is supported by a conclusory declaration from Erik Savitt, which simply echoes the declaration in support of the BMW Defendants' motion to seal based on Xperi's “understanding.”

Xperi's motion to seal is denied for failure to demonstrate an overriding interest that overcomes the right of public access. (*In re Providian Credit Card Cases*, *supra*, 96 Cal.App.4th at pp. 301, 305.)

Conclusion

The separate motions to dismiss the FAC by the BMW Defendants and Xperi are both granted. The demurrers to the FAC are both overruled as moot in light of the ruling on the motions to dismiss. Both motions to seal are denied. The court will prepare the order.

Calendar Line 9 and 10

Case Name: Hang Sheng et al. v. Prometheus Real Estate Group, Inc. et al.

Case No.: 25CV471047

This is an action arising from alleged fraud, public nuisance and breach of contract brought by self-represented plaintiffs Hang Sheng and Chao Xu (Plaintiffs) against defendants Prometheus Real Estate Group, Inc. (Prometheus) and Preg San Antonio Apartments LP (PSAA).

The original and still operative complaint, filed on July 22, 2025, alleges nine causes of action: (1) fraud by concealment; (2) fraud by intentional misrepresentation; (3) fraud by false promise; (4) private nuisance; (5) negligence; (6) breach of contract; (7) breach of the implied warranty of habitability; (8) breach of the covenant of quiet enjoyment; and (9) unlawful business practices. All causes of action are alleged against all defendants. There are seven exhibits attached to the complaint.

At issue is a motion to strike portions of the complaint brought by Prometheus. Plaintiffs oppose. PSAA's request for joinder to the motion to strike is granted.

LEGAL STANDARDS—MOTION TO STRIKE

Under Code of Civil Procedure section 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. Irrelevant matter includes (1) an allegation that is not essential to the statement of a claim or defense, (2) an allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense, and (3) a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint. (Code Civ. Proc., § 431.10, subds. (b), (c).) At the same time, the Court of Appeal has emphasized “[w]e have no intention of creating a procedural ‘line item veto’ for the civil defendant.” (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683.) The grounds for a motion to strike must appear on the face of the challenged pleading or from matters of which the court may take judicial notice. (Code Civ. Proc., § 437, subd. (a); see also *City and County of San Francisco v. Strahlendorf* (1992) 7 Cal.App.4th 1911, 1913.) In ruling on a motion to strike, the court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (*Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63.)

California Rules of Court, rule 3.1322(a) requires that “[a] notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322(a).)

As with a demurrer, no extrinsic evidence can be considered. This includes declarations. The court has considered the declaration from Prometheus counsel Evelina Chang in support of the motion only to the extent it addresses the meet and confer efforts required by statute and has not considered the attached exhibits. The court has not considered any portion of the two declarations submitted by Plaintiffs, any portion of the attached exhibits, or any arguments based on this extrinsic evidence. While the party bringing a motion to strike is required by statute to file a declaration describing meet and confer efforts, there is no

authority permitting an opposing party to file a declaration. Self-represented litigants “are held to the same standards as attorneys” and must comply with the rules of civil procedure. (*Kobayashi v. Superior Court* (2009) 175 Cal.App.4th 536, 543; *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985.)

DISCUSSION

Prometheus’ request for judicial notice in support of the motion to strike is denied. (*Paul v. Patton* (2015) 235 Cal.App.4th 1088, 1091, fn.1 [denying as unnecessary a request for judicial notice of pleading under review on demurrer].)

Prometheus’ motion strike largely fails to comply with Rule of Court 3.1322(a) because the targets of the motion are not clearly identified in the notice of motion. The notice of motion identifies the requests for punitive damages and attorney fees that are made in the complaint’s prayer and exhibit 7 to the complaint. While other targets of the motion are more precisely identified in the supporting memorandum, that does not comply with Rule 3.1322(a). (See memorandum at p. 2:1-4.)

The motion to strike exhibit 7 to the complaint is denied. Assuming arguendo that an attached exhibit can be considered part of a “pleading” as defined in Code of Civil Procedure section 435, Prometheus has failed to show that this exhibit (containing noise complaints similar to Plaintiffs’ alleged experience) are irrelevant to all of Plaintiffs’ causes of action. (See complaint at ¶¶ 44-47.) Asserting that an allegation is “hearsay” is not a basis for a motion to strike the allegation, much less a basis for striking an exhibit to a pleading.

Prometheus’ motion to strike the request for punitive damages in the complaint’s prayer (and, even if considered, requests made elsewhere in the body of the complaint that are only identified in the supporting memorandum) is also denied. A motion to strike is not a substitute for a demurrer and cannot be used to assert that a cause of action is inadequately pleaded. (*Pierson v. Sharp Memorial Hospital* (1989) 216 Cal.App.3d 340, 342 [“[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer.”].) Code of Civil Procedure section 436, subdivision (a), “does not authorize attacks on entire causes of action, let alone entire pleadings.” (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528.) “Its purpose is to authorize the excision of superfluous or abusive allegations.” (*Ibid.*)

Prometheus and PSAA have not demurred to any of the three fraud causes of action alleged against them in the complaint. Those causes of action are therefore presumed to be adequately pleaded against them for purposes of this motion. Any adequately pleaded fraud claim will support recovery of punitive damages. (*Stevens v. Superior Court* (1986) 180 Cal.App.3d 605, 610.)

The motion to strike the request for attorney fees in the complaint’s prayer is granted. Under Code of Civil Procedure section 1021, “each party is to bear his or her own attorney fees unless a statute or the agreement of the parties provides otherwise.” (*Gray v. Don Miller & Associates, Inc.* (1984) 35 Cal.3d 498, 504; see Code Civ. Proc., § 1021 [“Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties; but parties to actions or proceedings are entitled to their costs, as hereinafter provided.”].) The complaint does not allege any statutory or contractual basis for the recovery of attorney fees.

Even if it did, self-represented litigants are not permitted to recover attorney fees. (*Witte v. Kaufman* (2006) 141 Cal.App.4th 1201, 1207-1209; *Trope v. Katz* (1995) 11 Cal.4th 274, 277, 280-282 (*Trope*).)

Plaintiffs' argument in opposition that they should be permitted to request attorney fees because they may be represented by counsel in the future is unpersuasive. (See opposition at p. 2:11-15, 8:23-10:9.) Contrary to what the opposition claims, Civil Code section 1942.4 (which is not referenced in the complaint) does not alter the general rule that self-represented parties cannot recover attorney fees. Similarly, the private, contract-based dispute between Plaintiffs and Prometheus and PSAA alleged in the complaint does not present a situation that might benefit the general public such that Code of Civil Procedure section 1021.5 (which is also not referenced in the complaint) might apply. Even if it did, that would not change the general rule that self-represented litigants may not recover attorney fees. "[T]he usual and ordinary meaning of the words 'attorney's fees,' both in legal and in general usage, is the consideration that a litigant actually pays or becomes liable to pay in exchange for legal representation." (*Trope, supra*, 11 Cal.4th at p. 280.) Plaintiffs have not paid any such consideration and will not unless they acquire legal representation at a later date.

The motion to strike the request for attorney fees from paragraph 8 of the complaint's prayer is granted without leave to amend. If Plaintiffs acquire legal representation at some later date and believe they can identify a basis for requesting attorneys' fees, they may bring a noticed motion for leave to amend.

CONCLUSION

Defendant PSAA's request for joinder is granted.

Defendant Prometheus's request for judicial notice is denied.

Prometheus' motion to strike portions of the complaint is granted without leave to amend as to the request for attorney fees in paragraph 8 of the complaint's prayer. The motion is denied in all other respects.

Defendants Prometheus and PSAA are directed to file answers to the complaint within 30 days of the court's final order. (Code. Civ. Proc., § 472a, subd. (d).)

The court will prepare the order.

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Calendar Line 11**Case Name:** Fuheng, Inc. et al. v. Ling Yeung**Case No.:** 24CV441592

Defendant Ling Yeung's motion to compel responses to special interrogatories, set two, and further responses to request for production, set two. Notice is proper and the motion is opposed by plaintiffs Fuheng, Inc., and Dalong Zhang.

Defendant's meet and confer efforts were minimal, but the court does not deny the motion on that basis because defendant exchanged e-mail messages with plaintiffs' counsel before filing the motion to compel.

Special Interrogatories: Each party is generally limited to 35 special interrogatories. (Code Civ. Proc., § 2030.030, subd. (b).) A party requesting more than 35 special interrogatories must include a declaration with the information described in Code of Civil Procedure section 2030.050. Where no such declaration is made, a party need respond only to the first 35 specially prepared interrogatories served, if that party states an objection to the balance. (Code Civ. Proc., § 2030.030, subd. (c).)

Defendant's first set of special interrogatories included 20. Set two included an additional 20. That exceeds the limit of 35. Plaintiffs object on the basis that defendant exceeded the maximum number of allowable special interrogatories. But plaintiffs do not explain why they apparently refused to respond to *any* of set two. Plaintiffs were required to respond to special interrogatories one through 24 of set two, and then could object to and not respond to the balance. The motion to compel responses to the special interrogatories is therefore GRANTED IN PART.

Requests for Production: A motion to compel further responses to a demand for inspection of documents or tangible things "must be accompanied by a separate statement." (Cal. Rules of Court, rule 3.1345(a); *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.) Defendant's motion to compel further responses to requests for production, set two, was not accompanied by a separate statement. The motion is DENIED as to those requests.

Plaintiffs provide no substantial justification for their failure to respond to special interrogatories one through 24 of set two. (Code Civ. Proc., § 2023.030, subd. (a) [the court "shall impose" discovery sanctions "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust"].) Defendant requests \$20,000 in sanctions "as a warning." But the purpose of discovery sanctions is compensatory and not punitive. The court will impose sanctions against plaintiffs and their counsel in the amount of \$60 (the filing fee for the motion).

The motion to compel further responses to requests for production, set two, is DENIED. The motion to compel responses to special interrogatories, set two, is GRANTED IN PART: plaintiffs are ordered to respond to special interrogatories one through 24 of set two no later than June 12, 2026. The court awards defendant sanctions against plaintiffs and their counsel in the amount of \$60, due no later than June 12, 2026. The court will prepare the order.

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Calendar Line 12

Case Name: Alvaro Pedroza v. Ford Motor Company et al.

Case No.: 24CV454281

This is a Song-Beverly Consumer Warranty Act case. Plaintiff Alvaro Pedroza moves to compel further responses to certain requests for production of documents (Nos. 16 through 24, 30, 50, and 51) from defendant Ford Motor Company (Ford). The parties separate discussion of the requests into two groups.

Request for Production Nos. 16 through 24: These requests relate to Ford's policies and procedures related to warranty claims and handling customer complaints related to possible Song-Beverly Act claims. Ford initially withheld records pending entry of a stipulated protective order. Plaintiff confirms that after the stipulated protective order was entered, Ford produced documents related to a class action case "encompass[ing] policies and procedures for the years 2016 through 2024." (Reply ISO MTC, at 2:9-16.) Plaintiff argues the response should be supplemented with records for 2025. The court finds Ford's response code-compliant. The motion is DENIED as to these requests.

Request for Production Nos. 30, 50, 51: These requests seek information about complaints from owners of 2023 Ford F-150 trucks, which is the same make and model as plaintiff's truck. In a meet and confer letter, Ford agreed to "meet and confer with [plaintiff] to establish appropriate search parameters to identify additional documents from Ford's internal databases" to respond to these requests. Ford indicated it would supplement its responses to include: "Complaints or concerns made by California customers of vehicles that are of the same year, make, and model as Plaintiff's vehicle, which is a 2023 Ford F-150 Crew Cab, with 4-wheel L/H part time drive, equipped with a 3.5L V6 engine, and a Mod Hybrid Transaxle-A10R80 MHT-X, and involving the agreed symptoms from Plaintiff's repair records allegedly exhibited in Plaintiff's vehicle." (Exh. E. to Lopez dec. ISO MTC, filed 9/3/25.) The court agrees with plaintiff that no further meet and confer is necessary or appropriate. The motion to compel is GRANTED as to request Nos. 30, 50, and 51 as follows: Ford must produce responsive documents that meet the parameters it previously identified.

Plaintiff requests sanctions in the amount of \$2,734. The court finds no substantial justification for Ford's failure to supplement its responses to request for production Nos. 30, 50, and 51. (Code Civ. Proc., § 2023.030, subd. (a) [the court "shall impose" discovery sanctions "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust"].) The court finds sanctions appropriate in the amount of \$1,200 (four hours at \$300/hour).

In sum, the motion to compel is GRANTED IN PART. Ford is ordered to provide documents responsive to request for production Nos. 30, 50, and 51, as follows: Complaints or concerns made by California customers of vehicles that are of the same year, make, and model as Plaintiff's vehicle, which is a 2023 Ford F-150 Crew Cab, with 4-wheel L/H part time drive, equipped with a 3.5L V6 engine, and a Mod Hybrid Transaxle-A10R80 MHT-X, and involving the agreed symptoms from Plaintiff's repair records allegedly exhibited in Plaintiff's vehicle. Ford must produce those documents no later than June 12, 2026. Ford's counsel is ordered to pay plaintiff \$1,200 in sanctions no later than June 12, 2026. The court will prepare the order.

Calendar Line 13**Case Name:** Catalina Alvez et al. v. Tina Seng et al.**Case No.:** 24CV444462

At issue is a motion by Defendants Tina Seng and Brian Seng for leave to file cross-complaint. According to the allegations of the original and still operative complaint, Plaintiffs reside in and rent a residence (the Premises) in San Jose that is owned by Defendants. (Complaint, ¶¶ 5, 9, 10.) Plaintiffs have occupied the Premises since October 2013. The complaint alleges Defendants began extensive remodeling work on the Premises in September 2023 to convert the garage to an Accessory Dwelling Unit. Plaintiffs allege that the Premises became a “perpetual construction site, creating an almost constant nuisance for [them].” (*Id.*, ¶¶ 18-19.) That nuisance included, among other things, almost daily trespass into Plaintiffs’ living space by construction workers and Defendants’ use of Plaintiffs’ electricity and water for the remodeling work. (*Id.*, ¶¶ 20-22.) Plaintiffs further allege Defendants forced Plaintiffs to execute a new lease under duress, which drastically changed the scope of the existing agreement between the parties by removing from the lease areas of the Premises that had been seized by Defendants. (*Id.*, ¶ 23.)

Plaintiffs filed the complaint in August 2024, alleging causes of action for: (1) breach of implied warranty; (2) breach of covenant of quiet enjoyment; (3) breach of covenant of good faith and fair dealing; (4) private nuisance; (5) negligence; (6) breach of contract; (7) violation of San Jose Municipal Code § 17.20.900, et seq.; and (8) false imprisonment. Trial is set for October 5, 2026.

Defendants move for leave to file what they contend is a compulsory cross-complaint. The proposed cross-complaint seeks to allege causes of action for breach of contract and negligence. It is based on allegations that Plaintiffs caused damage to the Premises beyond ordinary wear and tear.

A party who fails to plead a compulsory cause of action may apply to the court for leave to file a cross-complaint at any time during the course of the action. (Code Civ. Proc., § 426.50.) The court shall grant such leave if the party acted in good faith. (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 959.) Section 426.50 “shall be liberally construed to avoid forfeiture of causes of action.” (Code Civ. Proc., § 426.50.)

“Factors such as oversight, inadvertence, mistake, or neglect are insufficient grounds to deny the motion unless accompanied by bad faith.” (*Silver Orgs. v. Frank* (1990) 217 Cal.App.3d 94, 99 (*Silver Orgs.*)). In this context, “bad faith” has been held to mean “[a] dishonest purpose, moral obliquity, sinister motive, furtive design or ill will.” (*Id.* at p. 100.) There must be “substantial evidence” of bad faith in order for a court to deny leave to file a compulsory cross-complaint; this requires the presentation by the non-moving party of substantial evidence of “actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake . . . , but by some interested or sinister motive[,] . . . not simply bad judgment or negligence, but rather . . . the conscious doing of a wrong because of a dishonest purpose or moral obliquity; . . . it contemplates a state of mind affirmatively operating with furtive design or ill will.” (*Ibid.*, internal citation omitted.) Delay, without more, does not amount to bad faith. (*Silver Orgs.*, at p. 101.)

Here, Plaintiffs that Defendants' motion is made in bad faith because they were made aware of the purported damages to the Premises in November 2024, shortly after the answer was filed, but delayed filing their motion for leave until nearly a year later. But Plaintiffs offer no evidence suggesting that Defendants were aware of such damages at that time. Defendants' explanation for not filing the cross-complaint earlier is that when their counsel filed their answer to the Complaint, he was unaware of the basis to file such a pleading. (See Declaration of Gary W. Sullivan in Support of Motion for Leave to File Cross-Complaint, ¶ 3.) That delay, without more, is insufficient evidence of bad faith. Plaintiffs' insistence that Defendants' intentionally delayed filing the cross-complaint is speculative and not supported by any evidence. The court finds no bad faith on this record.

The motion for leave to file the cross-complaint is GRANTED. Defendants are ordered to file the proposed cross-complaint no later than May 20, 2026.

The court will prepare the order.

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